Monday 29 September 2025

Joint Standing Committee on Electoral Matters
Parliament House
CANBERRA ACT 2600

by email only to **em@aph.gov.au**

Dear Committee members,

Inquiry into the 2025 federal election.

Thank you for the opportunity to provide our members' expertise to the Committee.

Established in the late 19th century, the Proportional Representation Society is Australia's oldest continuing electoral reform coalition. Our founders pioneered the adoption of the single transferable vote and preferential voting in the early days of Australia's federation and for over 100 years our members have worked to defend Australia's democratic traditions and improve our electoral democracy.

As our name might suggest, our animating cause is for greater proportional representation and electoral systems that result in outcomes that better reflect voters' real preferences. But our purpose is to safeguard the health of Australia's democratic institutions in all their forms.

In the context of this inquiry, where concerns over growing distrust in democracy are high, we invite the Committee to put aside partisan considerations and consider what impacts our current House of Representatives distorted electoral results might have on voters' trust in the system over the long term.

Our members are available to discuss these matters further with the Committee.

Yours sincerely,

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Recommendations

1. That the House of Representatives be elected by **multi-member districts of three or five MPs** using the single transferable vote.

2. That Commonwealth Parliament **expand in size to achieve as near as practicable the principle of one vote one value** by increasing each states' Senate entitlement to 18, increasing each territories' Senate entitlement to 5 and subsequently increasing the size of the House to around 223 MPs.

3. That **savings provisions be expanded** to reduce disenfranchising nearly 2% of voters by counting as formal ballots where — but for a break in numbering — the intention is clear.

4. That ballots electing multiple MPs or Senators **adopt the "Robson" vertical ballot rotation** to eliminate "safe seats" in multi-member districts.

5. That How to Vote cards be required to include clearer messaging on them only being guidance and that stronger restrictions be placed on how much material and how many partisan volunteers can be **at each polling place**.

Why proportional representation?

As growing distrust in institutions are driving democratic backsliding around the world, it is critical that Australia work to protect our democracy. Not just through maintaining the institutions we have, but critically interrogating them, improving them and innovating new ways to expand and deepen our democracy.

It is easy to fall into the contradiction that to protect democracy we must do less of it. Many have advocated for fewer elections, less representative outcomes and more technocratic or arms-length decision-making. It's that tendency that drives distrust in our democracy. Democratic acts cease to have meaning or cause meaningful change — and people grow to either disengage with them or treat it like a game with no stakes.

The appeal of our existing preferential electoral system is that it tends towards majority governments while still providing a level of proportionality not present in conventional "first past the post" majoritarian systems and delivering results in a timely way. However, as the third party vote share grows, those results are becoming less timely with more divisions being "too close to call" on polling day, while those majoritarian results become increasingly disproportional to the will of the electorate at large. Each passing election, the balance between a fast decisive result and closeness to voters' intention becomes increasingly tenuous.

Interference by bad actors isn't the only thing that increases distrust in democratic institutions — the intransigence of incumbents is just as damaging. If the small group of people already in power are unwilling to make concessions to the voting majority, then their bases will shatter and fragment with or without any outside interference, as the chaos unfolding in the United Kingdom shows.

Voters are entitled to not only express their true preferences but to have those preferences elect people who reflect their values. Losing sight of this and thinking that our electoral system should aim to elect the "least worst" options rather than a representative spread of voters' (sometimes distasteful or idiosyncratic) views is a key driver in voters losing trust in democracy. Why would they think their vote matters if the same people get elected and the same decisions get made?

Leading researchers into the growing threat of the far right in UK, the US and Europe have identified voters ceasing to believe voting can meaningfully change anything — either to improve their lives or society broadly — as the key that unlocks voters' willingness to entertain voting for extremist parties. These voters rarely actually believe the extremist parties will do the policies they claim to want. Telling them they're wrong won't help either. They feel so neglected, ignored and fed up that they just want to just tear down the institutions and the people they identify with them.

If politics cannot *i.* provide representation that aligns with their real preferences, *ii.* deliver meaningful changes to their lives through voting and *iii.* creates space for alternative political entrepreneurship to the far right, then voters will peel off towards them until they have a critical mass to tear everything down.

This large scale dealignment and realignment has been observed in Australia over the last thirty years in repeated systemic analyses of the Australian Electoral Study — but the scale of the change has been occluded by Australia's compulsory voting system. Voters feel obliged to vote, and often vote for a major party, because they are not given a choice to elect someone who actually reflects their values. There's only so long voters will accept this obligation before losing trust in the overall system.

There's a real risk that partisans standing in the way of electoral reform to avoid having to share power or keep potential competitors out are creating the very circumstances that precede their own collapse. It's very easy to cling on to power until you find you're left with none at all.

In their desperate attempts to avoid PASOKification, major parties in many countries — most notably right now in the United Kingdom — have resisted electoral reform that might have caused controlled party fragmentation and instead triggered uncontrolled fragmentation exacerbated by rather than moderated by their existing electoral systems.

In a similar vein, the received wisdom is that single member majoritarian systems are more stable and lead to more moderate Parliaments, more resilient governments and higher trust in the democratic process. That received wisdom is

wrong on all counts — as the last ten years of chaos in the United States and United Kingdom prove.

While Australia's preferential voting system avoids some of the pitfalls of first past the post, there is only so much damage it can mitigate when multiple parties start commanding 10+% of the vote and major parties start slipping below 30% consistently. Even our electoral system routinely creates outcomes that hugely pervert the wishes of the voters.

Any form of "winner takes all" election not only encourages but actively rewards "no compromise" bravado in political discourse which then drives partisan polarisation, hostility between political actors at elections and increased feelings of being unsafe to vote or express genuinely held political opinions.

While our federal elections are hardly the worst example of this "winner takes all" mentality in Australia — that honour goes to Queensland — our House of Representative's electoral system nonetheless discourages negotiation, consensus and compromise in both Parliament and come election time. There's no political incentive for House of Representatives candidates to foster a culture of deliberation. Majoritarian systems make everything black and white, hiding the many areas of agreement. Every issue becomes a stick to defeat an opponent, rather than something to be solved to the advantage of all.

This will get inevitable pushback on the basis that Australians supposedly want strong, decisive majority government and have a deep hostility towards minority governments. Putting aside how there's very few real world examples of Australian governments at any level being "punished" for being in minority, most public opinion research we have suggests the very opposite. While time-series data is not readily available, recent polling and academic research suggests that overall Australians are more willing to accept minority or coalition governments and in fact younger Australians prefer some form of power-sharing, compromise or negotiated government to majority governments.

The more proportional an electoral system is, the more options for government formation and legislative navigation there are in Parliaments. The only trade-off is that the "faceless men" — internal power brokers within the major parties who

make their mark on private deals and keeping disagreements far from public scrutiny — would see their influence wane in favour of more public discourse.

Majoritarian systems are also vulnerable to huge swings in seats that don't reflect often far more moderate swings in votes. While you could generously describe this as forced renewal for moribund governments, parties of government facing a moderately poor electoral result — as the Coalition faced in this year's federal election — end up with having their future talent cut out from underneath them. The more majoritarian a system is, the less stable opposition parties are and less able to provide certainty to future leadership candidates, recruit that talent in the first place, or provide moderate counterpoints to the government's agenda. All of this drives more extremism, division and fragmentation.

Australia's 1977 federal election — which until very recently was the most disproportionate federal election in Australian history — resulted in the Coalition winning 72% of seats with just 55% of the two-party preferred vote.

The 2025 federal election result was twice as disproportionate as the 1977 result. The main explanation for why the 2022 and 2025 results were so disproportionate is that Australia is now a solidly multi-party democracy — with only 45 seats nationwide where any candidate reaches 50% of the vote on a three-candidate preferred basis[1].

In fact, the 2025 federal election is the least proportionate election outcome in the history of Australian federal elections. The Gallagher "least squares" index measures disproportionality between a party's vote share and seat share. A perfectly proportional system scores one (achieved either with a very high 20*n*+ magnitude of representatives per district — or by only having two parties contesting), while a highly disproportionate system scores more than ten.

Historically, Australia has hovered around eleven, the 2022 result reached nearly seventeen — and the 2025 election resulted in an index of over twenty-two. By comparison, the 2011 NSW state election's result was just over fifteen, the 1961,

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[1] Ben Raue, "Who makes the 3CP, where?" *The Tally Room* (27 June 2025) <https://www.tallyroom.com.au/60806>

1967 and 2022 Victorian state election results were comparable at around twenty-two each, and the 2012 Queensland state election — the most disproportionate election in Australian history — was thirty-one. It is not unreasonable to expect the House of Representatives elections to potentially reach that lopsided result in the future without serious reform.

To demonstrate, here's a table of the 2025 election results by political party:

	Labor	**Liberal-National Coalition**	**The Greens**
National voteshare	34.6%	31.8%	12.2%
House seats won	94	43	1
Proportion of House won	63%	27%	1%
Senate seats won	16	13	6
Proportion of Senate won	40%	33%	15%
	Pauline Hanson's One Nation	**Katter's Australia Party**	**Independents and other crossbenchers**
National voteshare	6.4%	0.3%	7.3%
House seats won	0	1	11
Proportion of House won	0%	1%	7%
Senate seats won	3	0	2
Proportion of Senate won	8%	0%	3%

While the last few elections have led to some declaring that there are "no more safe seats", our single-member majoritarian system nonetheless results in a significant proportion of seats which rarely — and sometimes never — change hands. While safe seats might be a boon for corporate memory in Cabinet, they result in an entrenched underclass of voters who never get local representation that reflects their ideological side of politics. It could be argued that the Senate's statewide representation fills this niche but for people in regional cities or the outer suburbs of our capitals, they don't even have that.

Conservative voters in Newcastle for example have never had local federal representation since the seat has been held by Labor since Federation. A Coalition

Senator has been based in Newcastle for many years but that isn't a luxury every regional centre has. The idea of a duty Senator is itself a perversion, an artifice created by the need for ideological representation in areas denied it by the electoral system.

This system also routinely creates perverse outcomes where a quirk of preference spreads in contests where three, four or more candidates are possible run-off winners end up with a non-Condorcet winner who is less representative of their electorate. The division of Ryan in Brisbane is a classic example of this where Labor, the Condorcet winner — or the winner who most represents the median voter in a district, identified by winning the most head-to-head pair-ups — nonetheless loses, resulting in the Greens winning the one electorate that least ideologically aligns with their policies, but losing the three electorates that more.

Multi-member districts also reduce the impact of the boundary problem on election results. While less pronounced than in the United States where arbitrary boundary choice — sometimes called the "Gerrymander Wheel" or "Redistricting Roulette" — is a well-known problem, Australia's single-member districts nonetheless suffer from decisions on where the boundary of a district is placed influencing the outcome of the election without a single vote changing. These impacts are often minimal at redistributions due to so few voters being shifted between districts — but a significant increase of seats would result in a (long overdue) fresh start on district mapping.

This might put an independent redistribution commission in a tight spot, as Queensland's is currently grappling with regarding the state district of Gladstone. Gladstone is a very strongly Labor seat surrounded by very strongly LNP voting regional areas. Changing population patterns has faced the redistribution commission with the prospect of having to choose between maintaining a tightly packed Labor seat as a "donut" or "cracking" it, delivering two LNP seats at the expense of the Labor voters in Gladstone proper.

Multi-member districts solve this problem by having both a Labor and LNP representative elected in whatever district Gladstone is covered by. Any arbitrary boundary will cause some distortion but most of that distortion can be mitigated through increased magnitude.

Implementing proportional representation

For those reasons and many more, we advocate for Australia's House of Representatives be elected by a suitably low-magnitude form of proportional representation that strikes the balance between stability, predictability, local representation and reflecting voters' preferences — namely, proportional representation through the single transferable vote, as we already use in the Senate and many subnational jurisdictions across Australia.

A 2011 paper[2] analysed 609 elections in 81 countries between 1945 and 2006 identified an "electoral sweet spot" that optimises for the nexus between proportionality or voters' intention and accountability or proximity that has come up repeatedly throughout this submission. The paper found that magnitudes of three to seven strikes the closest balance between maximising proportionality while minimising the number of parties in a governing coalition and the geographic and population distance between a voter and their representative.

We believe a district magnitude of five MPs, and a fallback preference for three MPs where state allocations are not a multiple of five, strikes the right balance between diversity of representation and stability[3]. This is the magnitude of Legislative Council regions in Victoria for example.

The lower-magnitude districts go to areas with the lowest population density, as a systemic way to both ensure fair allocation of seats and keep total district area as low as possible for very rural and remote areas.

The following tables outline how multi-member districts would be apportioned to states and territories under three different assembly sizes — *i.* the current 150 seats, *ii.* a bare minimum increase to 175 seats or *iii.* our preferred increase to 223 seats, which we will discuss in more detail in the next section.

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[2] John Carey and Simon Hix. "The Electoral Sweet Spot: Low-Magnitude Proportional Electoral Systems" (2011) 55(2) *American Journal of Political Science* 383 <https://onlinelibrary.wiley.com/doi/full/10.1111/j.1540-5907.2010.00495.x>

[3] Proportional Representation Society of Australia, "Australia's 2025 general elections using its long-standing transferable voting" *Quota Notes* (June 2025) <https://www.prsa.org.au/qn/2025b_.html#section1>

i. 150 seats — the *current* arrangements

New South Wales	Victoria	Queensland	Western Australia
46 MPs split into	38 MPs split into	30 MPs split into	16 MPs split into
8 districts of 5 MPs + 2 districts of 3 MPs	7 districts of 5 MPs + 1 district of 3 MPs	6 districts of 5 MPs	2 districts of 5 MPs + 2 districts of 3 MPs
South Australia	**Tasmania**	**ACT**	**Northern Territory**
10 MPs split into	5 MPs split into	3 MPs split into	2 MPs split into
2 districts of 5 MPs	1 district of 5 MPs	1 district of 3 MPs	1 district of 2 MPs

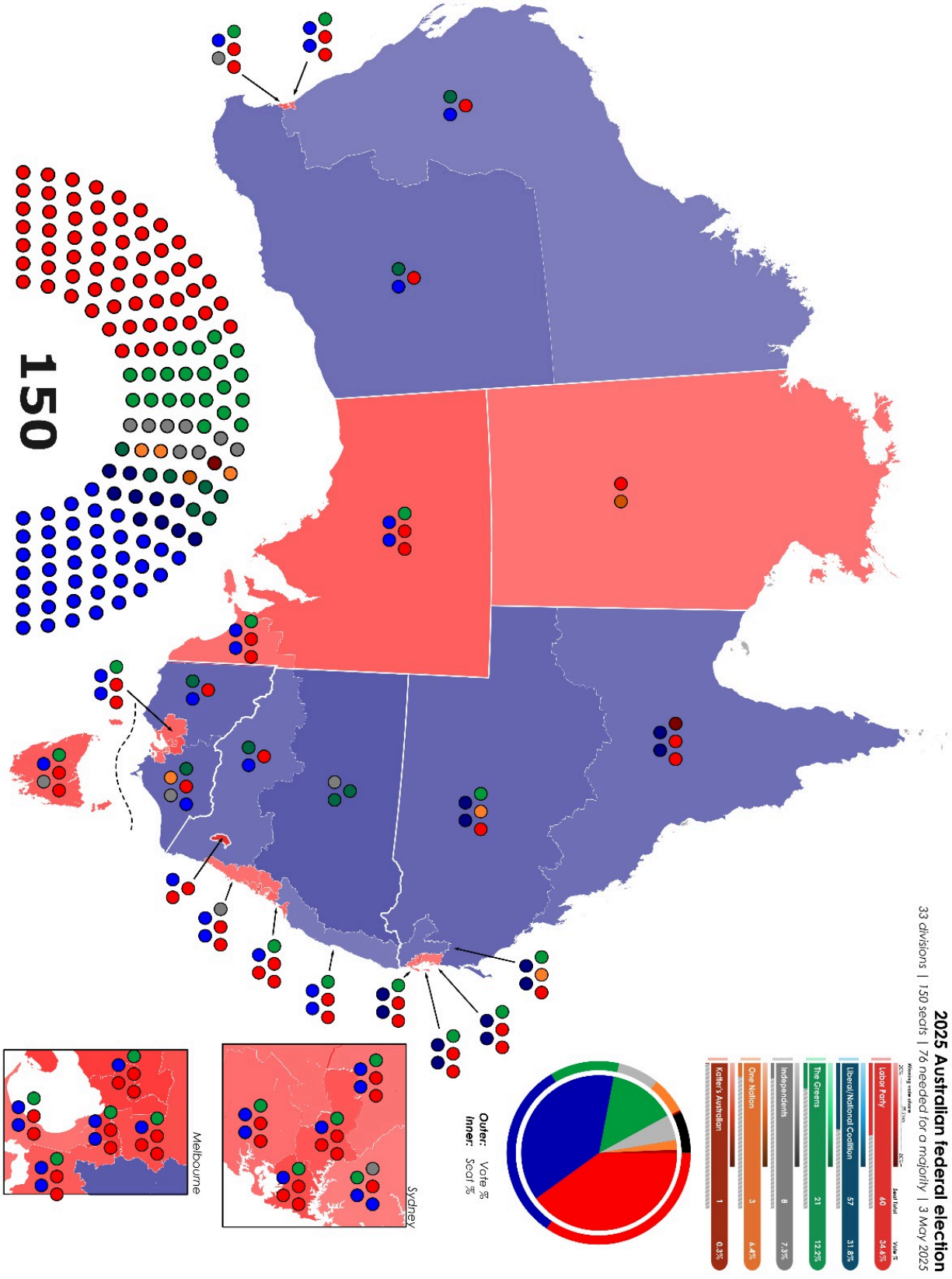
ii. 175 seats — the *bare minimum* increase

New South Wales	Victoria	Queensland	Western Australia
54 MPs split into	44 MPs split into	36 MPs split into	18 MPs split into
9 districts of 5 MPs + 3 districts of 3 MPs	7 districts of 5 MPs + 3 districts of 3 MPs	6 districts of 5 MPs + 2 districts of 3 MPs	3 districts of 5 MPs + 1 district of 3 MPs
South Australia	**Tasmania**	**ACT**	**Northern Territory**
12 MPs split into	5 MPs split into	3 MPs split into	2 MPs split into
4 districts of 3 MPs	1 district of 5 MPs	1 district of 3 MPs	1 district of 2 MPs

iii. 223 seats — our *preferred* increase

New South Wales	Victoria	Queensland	Western Australia
70 MPs split into	57 MPs split into	46 MPs split into	24 MPs split into
14 districts of 5 MPs	9 districts of 5 MPs + 4 districts of 3 MPs	8 districts of 5 MPs + 2 districts of 3 MPs	3 districts of 5 MPs + 3 districts of 3 MPs
South Australia	**Tasmania**	**ACT**	**Northern Territory**
15 MPs split into	5 MPs split into	4 MPs split into	3 MPs split into
3 districts of 5 MPs	1 district of 5 MPs	1 district of 4 MPs	1 district of 3 MPs

We have prepared a map to demonstrate what arranging the current electoral map as three or five member districts — and the likely results assuming voting patterns remain similar.



Under our proposed model, the 2025 Federal election would have resulted in a very different Parliament, albeit one that nonetheless elects a Labor government and overrepresents both Labor and the Coalition, electing:

	Labor	**Liberal-National Coalition**	**The Greens**
National voteshare	34.6%	31.8%	12.2%
House seats won under PR	60	57	21
Proportion of House	40%	38%	14%
Net change from actual	-34	+14	+20
	Pauline Hanson's One Nation	**Katter's Australia Party**	**Independents and other crossbenchers**
National voteshare	6.4%	0.3%	7.3%
House seats won under PR	3	1	8
Proportion of House	2%	1%	5%
Net change from actual	+3	0	-3

While the crossbench does grow significantly, better reflecting the third of the overall vote the collective crossbench receives each election, the big winners are areas of "safe seats" that were historically denied a diversity of local representation. After this election, no Australian would be denied local Labor or Liberal representation.

This also somewhat understates the real results for both One Nation and "Teal" independents because these two groupings did not run in every district at the 2025 federal election and overstates the results for the Greens

Our alternative election results are based on existing seat boundaries and assume that voting patterns would not substantially change under a more proportional system — both of which are unlikely to be the case. These results should only be seen as demonstrative of how disproportionate the 2025 results were.

Recommendation: That the House of Representatives be elected by multi-member districts of three or five MPs using the single transferable vote.

Improving representation through assembly size

We concur with other submitters that it is time to once again grow the size of the Commonwealth's Parliament for the first time since 1984. Parliament has categorically failed to grow at the pace at which Australia's population has grown.

Voters' votes have become significantly less powerful over subsequent decades while growing workload has resulted in an explosive growth in unelected political staffers which have a serious deleterious effect on our democratic culture. These combined have diminished the public's trust in our politicians, political parties, Parliaments and democracy as a whole.

It is generally accepted[4] that proportionality, or at least how representative of the ideological diversity of the voting public and assembly's make-up is, increases as a product of the magnitude of districts — that is the number of politicians elected in each district, currently one in the House of Representatives — and total assembly size. We have previously argued that the magnitude of House districts need to increase, we can achieve some level of better proportionality through merely increasing the total number of MPs elected.

While many submissions will recommend a bare minimum expansion to 14 Senators per state, we encourage the Committee to take advantage of what is likely to be a once-in-a-generation opportunity to instil the key principle of one vote, one value between states — if only for a few years.

If the primary motivation behind this increase is reducing MPs' workloads, a bare minimum increase would only last two election cycles before the number of voters each MP represents again reaches today's unacceptable level. But we will likely not have the social licence to do this increase so soon after, so we should not squander this opportunity. We will likely not have one again for forty years — which is the frequency with which these reforms have happened historically.

So we need to do an increase in full cognizance that we will likely be stuck with this configuration for the next forty years.

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[4] Matthew Shugart and Rein Taagepera, *Votes from Seats: Logical Models of Electoral Systems* (Cambridge University Press, 2017)

The constitutional guarantee that original states are entitled to an equal number of Senators each means that the Senate's voting system can never reflect the principle of one vote, one value[5].

However, the House of Representatives was never constrained in such a way. In fact, the House was intended to — as close as practicable — reflect the principle of one vote, one value[6].

However because Tasmania's population growth has significantly lagged behind other states — and the ACT's — since Federation while still being constitutionally guaranteed a minimum of five MPs, we now have a situation where Tasmanian MPs are representing around 65,000 fewer voters than one from NSW. In effect, a Tasmanian voter's vote is worth 50% more than a mainlander's.

House apportionment follows Senate apportionment in our current system but to work out how to achieve one vote one value in the House, we have to work backwards. This would mean starting from the current population quota and systemically reducing it by increasing each states' Senate allocation by 2 untilsuchtime as Tasmania's current population exceeds 4.5 times that quota.

Based on current population figures[7], that would mean an increase of each states' Senate allocation to 18 Senators — and subsequently an increase in size of the House of Representatives to around 223 MPs. This would represent approximately a 33% reduction in the number of people each MP would be elected to represent.

The main beneficiaries of any expansion of the Senate will be Labor and the Liberals[8].

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[5] Michael Sloane, "Representation of Commonwealth Territories in the Senate" *Papers on Parliament* (2016) 64:7 <https://www.aph.gov.au/About_Parliament/Senate/Publications_and_resources/Papers_and_research/Papers_on_Parliament_and_other_resources/Papers_on_Parliament/64/c07>

[6] *Australian Constitution* s 24

[7] Australian Bureau of Statistics, *National, state and territory population* (latest release, 18 September 2025) <https://www.abs.gov.au/statistics/people/population/national-state-and-territory-population/mar-2025>

[8] Ben Raue, "Who would benefit from an expanded parliament?" *The Tally Room* (29 September 2025) <https://www.tallyroom.com.au/62130>

While minor parties would feel more comfortable with the certainty smaller quotas bring, recalculating the last two elections for increases up to 18 Senators per state indicate that almost all additional seats are won by the major parties.

With only 12 Senators per state, the major parties narrowly missed out on the final quota, being chased down on preferences by minor parties with stronger preference swapping.

In this sense, the current Senate quotas systemically underrepresent Labor and the Liberals — admittedly far less so than the House of Representative's single-member districts systemically underrepresent other parties.

With the Senate acting in part as a more secure House to install future Ministerial talent or politicians whose expertise or skills do not lend themselves to the hard-fought battles in marginal Representatives seats, an expansion provides more opportunities for the major parties at a time when, especially for the Coalition, the major parties are less reliably winning enough Senate quotas to serve this purpose.

For the reasons aptly outlined by Ben Raue[9], we support a significant increase in the number of Senators for territories to the point where seats become competitive and no longer a *fait accompli* for each major party. We also believe that no multi-member district should elect an even number of positions. As such, the territories' entitlements — and any state's half-Senate election entitlement — should be increased to an odd number[10].

Until David Pocock's 2022 win, territory seats were locked in as one for each major party — essentially neutralising territories as meaningful battlegrounds for the formation of government or influence in the Senate.

In the context of territories being far more exposed to the vagaries of Commonwealth policymaking, territories being denied not only diverse

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[9] Ben Raue, "Time for a bigger parliament" *The Tally Room* (24 April 2023) <https://www.tallyroom.com.au/51493>

[10] Proportional Representation Society of Australia, *Advisability of setting an odd number of places to be filled at a PR election* (website) <https://prsa.org.au/sitervic/history/odd_even.htm>

representation that reflects their voters' preferences but also any real power in Parliament is indefensible.

Given the ACT is predicted to have a higher population than Tasmania by 2050 — and the territories together already exceed Tasmania's population by 20% — this may not even be enough[11]. One alternative that could be explored in future decades is allocating the territories collectively an equal number of Senators to a single state.

At minimum regardless of the recommended increase, an entitlement of 2 Senators is no longer appropriate and should be increased to a minimum of 5 Senators per territory to ensure these elections are genuinely competitive.

Recommendation: That Commonwealth Parliament expand in size to achieve as near as practicable the principle of one vote one value by increasing each states' Senate entitlement to 18, increasing each territories' Senate entitlement to 5 and subsequently increasing the size of the House to around 223 MPs.

[11] Australian Bureau of Statistics, *Population Projections, Australia* (latest release,23 November 2023) <https://www.abs.gov.au/statistics/people/population/population-projections-australia/latest-release>

Reducing accidental informality

Informal voting in the House of Representatives remains high and historic analyses of informal voting suggest upwards of half of all informal voters are only informal because of incomplete or non-sequential numbering. In those cases, the voters' intention is relatively clear and the discontinuity in numbering is often irrelevant to the outcome because the affected candidates are unlikely to finish in the top two.

Our current savings provisions are too inflexible to count these votes and it means nearly one in fifty voters are effectively disenfranchised through no fault of their own. The Australian Electoral Commission's own formality guidelines recommend erring on the side of the franchise but unfortunately they do not go far enough. We concur with Antony Green and Kevin Bonham who in previous inquiries made this point and stressed that votes should not be disallowed because of numbering errors involving irrelevant candidates.

It is our view that formality guidelines should be changed to ensure:

i. votes with gaps in the numbering sequence but no other defects (*e.g.* a break in numbering, leaving one square empty or a tick is used to represent a 1 but otherwise numbering is correct) are formal, and

ii. votes with incomplete preferences (*e.g.* correct number 1 to 5 but two empty squares) or with duplicate numbers (*e.g.* two 5s) are formal either until intention is no longer clear or, per Kevin Bonham's suggestion, a method for arbitrarily assigning an order for remaining candidates is found.

In a sense, this would allow through formality rules for optional preferencing. However, it is our strong view that optional preferencing should not be formally allowed nor should parties or campaigners be permitted to advocate for incomplete preferencing in electoral material.

Recommendation: That savings provisions be expanded to reduce disenfranchising nearly 2% of voters by counting as formal ballots where — but for a break in numbering — the intention is clear.

Eliminating "safe seats" through ballot design

What are 'safe seats' and why are they a problem for our democracy?

In the House of Representatives, most districts are regarded as 'safe seats', in other words, the choice of who is to be the representative for a particular district is effectively decided by the party whose existing member represents that district. This can lead to a situation where voters are essentially taken for granted. Thus it was that in the most recent Federal election, seats like Maranoa, Barker and Fenner are held by such large majorities that there is only a nominal campaign run in such electorates and the decision about who forms government is instead in the hands of voters in the "marginals".

Over a generation, some seats previously accounted safe have become very closely contested, so that, for example, Bradfield and Goldstein were once very safe seats for the Liberal Party, but these were the two closest results in the 2025 election. Conversely, some seats that are now safe seats were once marginal, such as Herbert and Hotham.

The problem of 'safe seats' is that in any one election, no more than one third of the divisions are being closely contested. To demonstrate the extent of safe seats, we have made a list of districts that:

i. changed hands,

ii. became very marginal after the election (under 5%), including some seats where a close result was not predicted, such as Bean and Forrest,

iii. were regarded as being 'in play', though were not in fact very close, such as Hawke, and

iv. were held by a margin of over 5%, but where the contest for 2nd place was close and the seats would have been much more marginal if the 3rd placed candidate after preferences had made it to second place, such as Fisher[12].

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[12] Ben Raue, "3CP data sheds light on the close races" *The Tally Room* (24 June 2025) <https://www.tallyroom.com.au/60797>

Our list of 'non safe seats' comes to 62, meaning that a majority of divisions (88 out of 150, or 59%) were 'safe seats', seats in which there was a much less of contest going on, leaving the decision as to who forms government being made in a minority of House of Representatives divisions.

We suggest that one reason why an increasing number of Australians are losing confidence in our democratic institutions, is that they feel they have little say over the result of elections, and this may be described as a form of democratic deficit. Ensuring that the largest possible portion of the population feels that they are part of the democracy is a crucial aim of our democratic system.

How can the problem of 'safe seats' be overcome?

Proportional representation, however it is implemented, means that voters in every corner of the country are in electoral districts where there is a genuine contest. We saw this in the 2025 election with the result in the Senate. In five out of six states, the balance of the Senate representation changed, with the two of the more significant parties that improved their votes most (ALP and One Nation) gaining seats at the expense of the parties that lost votes, particularly the Liberal Nationals.

However, not all proportional representation systems avoid the problem of safe seats. For example, in the Australian Senate, because of above-the-line voting combined with the fixed order of candidates in the party columns (which comes very close to being a party list), there are extremely safe positions. Thus, in South Australia for example, Senator Alex Antic (Liberal) was guaranteed election because of his position at the 'top' of the 'ticket'. In reality, at least 3, and generally 4 out of 6 senate positions up for election in each State were effectively safe seats, thus the proportion of 'safe seats' is very similar to the House of Representatives.

In Tasmania, proportional representation using the Single Transferable Vote, locally better known as the 'Hare-Clark' system, has operated since 1907. However in the 1970s, a challenge to the best practice democratic principles that applied in Tasmania was emerging — that political parties might 'instruct' the people voting for them to follow a 'how to vote' card and thus the choice of who sat in the Parliament would move away from the voters to the political parties. The Hon.

Neil Robson advocated for the rotation of names in each party's list — but not the rotation of the order in which party lists appear on the ballot. This rotation, which was introduced in 1980, eliminates the 'donkey vote', whereby a candidate who draws or is given by the party a higher position on a ballot paper is advantaged. Robson rotation removes the need, desirability, and practicality of How to Vote cards and shifts the power of the ballot to the voters, away from parties[13].

If Robson rotation, together with the abolition of above-the-line voting was to be applied to Senate elections, this would result in the following improvements:

- It would mean that every Senate seat is a competition, with the voters deciding which individual Senators are elected, as well as the voters deciding on what proportion of Senators comes from each party. Note that under Hare-Clark, candidates that are very popular often receive a far higher vote that is needed to be elected (such as Premier Jim Bacon in 2002 and Premier Jeremy Rockliff in 2024)
- Robson rotation would be incompatible with above-the-line voting, because the whole purpose of Robson rotation is to give the choice of the individuals elected back to the voters. In the Hare-Clark system, voters do not need to mark a preference for all candidates, the ballot papers in both Tasmania and the ACT ask voters only to fill in at least the number of vacancies. This has not led to significantly high informality, nor to significant numbers of exhausted or wasted ballots
- Robson rotation in combination with the other aspects of the Hare Clark system would mean a Senate that is even more representative of the voters' will that it is at the moment, and even if there were some exhausted ballots, the numbers of these are significantly smaller than wasted ballots in the House of Representatives.

Recommendation: That ballots electing multiple MPs or Senators adopt the "Robson" vertical ballot rotation to eliminate "safe seats" in multi-member districts.

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[13] Neil Robson, *Everybody Counts: Tasmania's unique electoral system — Hare-Clark with Robson rotation* (Proportional Representation Society of Australia, 2004) <https://www.prsa.org.au/everybody_counts.pdf>

Greater restrictions for polling places

One of the challenges that many voters face is what is sometimes termed "running the gauntlet" of partisans handing out How to Vote cards. Combined with the often excessive presence of posters, A-frames and bunting at polling booths, this can be confronting for some voters and contribute to a hostile atmosphere at polling places.

The Committee might want to consider looking at Victoria's restrictions on activities at polling places. Polling places at Victorian elections only allow a maximum of two A-frames per candidate or party at each polling place, no wasteful plastic bunting, and a limit on the number of partisans (whether paid or volunteer) handing out or speaking to voters.

A broader look at dialling back the intensity of campaigning at polling places is desirable but we are focusing on How to Vote cards for another reason. A more serious problem with How to Vote cards is that they weaken the voters' control of their ballot and their preferences.

How to Vote cards have been designed to encourage voters to diligently copy the recommended voting order onto their ballot papers. As a result, many voters mistakenly think that the law requires them to scrupulously follow the order on the card if their vote is to be valid, and this is not the case.

Yet other voters may decide that, having made their first choice, they need go no further than follow the order of the How to Vote card, saving them from further effort or thought. This is, in our view, discouraging voters from using the power of their ballot to its full extent.

At minimum, How to Vote cards should be clearly marked somewhere unmissable to the voter with a message that this is guidance only and they are only required to mark all squares in order of their preference. This should be a requirement both on online How to Vote or instructional sites and on physical How to Vote cards handed out at polling places.

For example, How to Vote cards might have, in a distinctive bold white type in at least 14 points font on black background on each side for each the House and Senate: "*This card is a recommendation only. Your vote will be equally valid so long as you mark all squares with numbers in sequence from one to the number of candidates*." and "*This card is a recommendation only. Your vote will be equally valid so long as you mark, in consecutive order, at least 6 boxes above the black line OR if voting below-the-line, consecutively number at least 12 boxes in any order that you choose.*"

At the 1975 Federal election fifty years ago, it was normal for a very high proportion of voters to take at least one how-to-vote card at the polling booth, and a very large proportion of voters would take all the cards handed to them.

As the number of candidates has grown, and the pressure of the "gauntlet" increased, fewer and fewer voters are taking the paper How to Vote cards at the polling booth.

This raises the question as to whether the time has come to reconsider the current practices.

If Parliament were to adopt the same rules for elections as apply in Tasmania and the ACT, with Robson rotation of ballot papers and no above-the-line voting in multi-member districts, there would be no need for How to Vote cards at all, and each individual voter would have full control over their ballots.

In our view, this is the best solution.

However, if Parliament continues to allow How to Vote cards, there should be a clear program of educating voters that they do not need to follow them including a clear message explaining the rules of formality.

Recommendation: That How to Vote cards be required to include clearer messaging on them only being guidance and that stronger restrictions be placed on how much material and how many partisan volunteers can be at each polling place.

Appendix: Calculating the ratio of voters to Senators in each state and territory

Election	New South Wales							Victoria							Queensland						
	Voters	Current		Minimum		OVOV		Voters	Current		Minimum		OVOV		Voters	Current		Minimum		OVOV	
2070	8,318,125	12	693,177	14	594,152	18	462,118	7,723,330	12	643,611	14	551,666	18	429,074	5,518,656	12	459,888	14	394,190	18	306,592
2067	8,200,578	12	683,382	14	585,756	18	455,588	7,570,427	12	630,869	14	540,745	18	420,579	5,438,345	12	453,195	14	388,453	18	302,130
2064	8,079,300	12	673,275	14	577,093	18	448,850	7,413,166	12	617,764	14	529,512	18	411,843	5,355,902	12	446,325	14	382,564	18	297,550
2061	7,954,143	12	662,845	14	568,153	18	441,897	7,251,497	12	604,291	14	517,964	18	402,861	5,271,142	12	439,262	14	376,510	18	292,841
2058	7,824,732	12	652,061	14	558,909	18	434,707	7,084,868	12	590,406	14	506,062	18	393,604	5,183,654	12	431,971	14	370,261	18	287,981
2055	7,690,265	12	640,855	14	549,305	18	427,237	6,912,270	12	576,023	14	493,734	18	384,015	5,092,623	12	424,385	14	363,759	18	282,923
2052	7,549,260	12	629,105	14	539,233	18	419,403	6,732,611	12	561,051	14	480,901	18	374,034	4,996,924	12	416,410	14	356,923	18	277,607
2049	7,400,292	12	616,691	14	528,592	18	411,127	6,545,057	12	545,421	14	467,504	18	363,614	4,895,528	12	407,961	14	349,681	18	271,974
2046	7,242,937	12	603,578	14	517,353	18	402,385	6,349,709	12	529,142	14	453,551	18	352,762	4,860,388	12	405,032	14	347,171	18	270,022
2043	7,077,523	12	589,794	14	505,537	18	393,196	6,147,341	12	512,278	14	439,096	18	341,519	4,674,676	12	389,556	14	333,905	18	259,704
2040	7,020,700	12	585,058	14	501,479	18	390,039	5,938,923	12	494,910	14	424,209	18	329,940	4,555,654	12	379,638	14	325,404	18	253,092
2037	6,845,406	12	570,450	14	488,958	18	380,300	5,724,844	12	477,070	14	408,917	18	318,047	4,431,111	12	369,259	14	316,508	18	246,173
2034	6,535,558	12	544,630	14	466,826	18	363,087	5,504,696	12	458,725	14	393,193	18	305,816	4,300,768	12	358,397	14	307,198	18	238,932
2031	6,329,273	12	527,439	14	452,091	18	351,626	5,269,950	12	439,163	14	376,425	18	292,775	4,160,462	12	346,705	14	297,176	18	231,137
2028	6,091,712	12	507,643	14	435,122	18	338,428	5,006,513	12	417,209	14	357,608	18	278,140	4,003,148	12	333,596	14	285,939	18	222,397
2025	5,565,927	12	463,827					4,440,688	12	370,057					3,611,600	12	300,967				
2022	5,317,669	12	443,139					4,263,424	12	355,285					3,333,395	12	277,783				
2019	5,190,855	12	432,571					4,063,675	12	338,640					3,153,047	12	262,754				
2016	4,864,040	12	405,337					3,791,254	12	315,938					2,920,373	12	243,364				
2013	4,630,543	12	385,879					3,573,481	12	297,790					2,746,285	12	228,857				
2010	4,529,026	12	377,419					3,484,143	12	290,345					2,658,954	12	221,580				
2007	4,307,403	12	358,950					3,335,339	12	277,945					2,470,921	12	205,910				
2004	4,270,127	12	355,844					3,265,797	12	272,150					2,369,873	12	197,489				
2001	4,133,129	12	344,427					3,106,115	12	258,843					2,183,729	12	181,977				
1998	3,989,416	12	332,451					3,018,089	12	251,507					2,110,149	12	175,846				
1996	3,826,483	12	318,874					2,892,013	12	241,001					1,993,339	12	166,112				
1993	3,682,249	12	306,854					2,827,560	12	235,630					1,812,526	12	151,044				
1990	3,559,905	12	296,659					2,678,015	12	223,168					1,676,706	12	139,726				
1987	3,397,273	12	283,106					2,599,972	12	216,664					1,569,425	12	130,785				
1984	3,423,624	12	285,302					2,614,383	12	217,865					1,555,600	12	129,633				
1983	3,247,827	10	324,783					2,495,392	10	249,539					1,472,462	10	147,246				
1980	3,184,997	10	318,500					2,413,273	10	241,327					1,356,589	10	135,659				

Election	Western Australia							South Australia							Tasmania						
	Voters	Current		Minimum		OVOV		Voters	Current		Minimum		OVOV		Voters	Current		Minimum		OVOV	
2070	2,767,894	12	230,658	14	197,707	18	153,772	1,527,063	12	127,255	14	109,076	18	84,837	428,449	12	35,704	14	30,604	18	23,803
2067	2,734,855	12	227,905	14	195,347	18	151,936	1,522,355	12	126,863	14	108,740	18	84,575	429,791	12	35,816	14	30,699	18	23,877
2064	2,700,620	12	225,052	14	192,901	18	150,034	1,517,160	12	126,430	14	108,369	18	84,287	431,005	12	35,917	14	30,786	18	23,945
2061	2,665,020	12	222,085	14	190,359	18	148,057	1,511,533	12	125,961	14	107,967	18	83,974	432,130	12	36,011	14	30,866	18	24,007
2058	2,627,616	12	218,968	14	187,687	18	145,979	1,505,406	12	125,451	14	107,529	18	83,634	433,159	12	36,097	14	30,940	18	24,064
2055	2,587,755	12	215,646	14	184,840	18	143,764	1,498,541	12	124,878	14	107,039	18	83,252	434,070	12	36,173	14	31,005	18	24,115
2052	2,544,788	12	212,066	14	181,771	18	141,377	1,490,570	12	124,214	14	106,469	18	82,809	434,764	12	36,230	14	31,055	18	24,154
2049	2,498,252	12	208,188	14	178,447	18	138,792	1,481,099	12	123,425	14	105,793	18	82,283	435,092	12	36,258	14	31,078	18	24,172
2046	2,448,083	12	204,007	14	174,863	18	136,005	1,469,883	12	122,490	14	104,992	18	81,660	434,943	12	36,245	14	31,067	18	24,163
2043	2,394,525	12	199,544	14	171,038	18	133,029	1,456,750	12	121,396	14	104,054	18	80,931	434,218	12	36,185	14	31,016	18	24,123
2040	2,337,972	12	194,831	14	166,998	18	129,887	1,451,911	12	120,993	14	103,708	18	80,662	432,819	12	36,068	14	30,916	18	24,046
2037	2,278,718	12	189,893	14	162,766	18	126,595	1,423,820	12	118,652	14	101,701	18	79,101	430,614	12	35,885	14	30,758	18	23,923
2034	2,216,654	12	184,721	14	158,332	18	123,147	1,403,411	12	116,951	14	100,244	18	77,967	427,443	12	35,620	14	30,532	18	23,747
2031	2,149,988	12	179,166	14	153,571	18	119,444	1,377,807	12	114,817	14	98,415	18	76,545	422,393	12	35,199	14	30,171	18	23,466
2028	2,076,047	12	173,004	14	148,289	18	115,336	1,342,952	12	111,913	14	95,925	18	74,608	414,361	12	34,530	14	29,597	18	23,020
2025	1,815,825	12	151,319					1,274,599	12	106,217					405,162	12	33,764				
2022	1,683,238	12	140,270					1,223,786	12	101,982					390,314	12	32,526				
2019	1,608,259	12	134,022					1,194,841	12	99,570					379,664	12	31,639				
2016	1,501,048	12	125,087					1,145,150	12	95,429					365,769	12	30,481				
2013	1,364,428	12	113,702					1,098,294	12	91,525					358,485	12	29,874				
2010	1,330,395	12	110,866					1,082,471	12	90,206					352,250	12	29,354				
2007	1,254,494	12	104,541					1,051,041	12	87,587					341,751	12	28,479				
2004	1,207,713	12	100,643					1,044,802	12	87,067					332,228	12	27,686				
2001	1,156,691	12	96,391					1,018,589	12	84,882					326,374	12	27,198				
1998	1,119,266	12	93,272					1,006,034	12	83,836					322,127	12	26,844				
1996	1,040,779	12	86,732					1,007,874	12	83,990					324,651	12	27,054				
1993	978,359	12	81,530					968,098	12	80,675					314,107	12	26,176				
1990	914,541	12	76,212					933,852	12	77,821					299,859	12	24,988				
1987	868,298	12	72,358					911,921	12	75,993					295,691	12	24,641				
1984	858,763	12	71,564					906,278	12	75,523					290,028	12	24,169				
1983	798,973	10	79,897					880,455	10	88,046					282,230	10	28,223				
1980	751,260	10	75,126					849,899	10	84,990					273,752	10	27,375				

Election	Australian Capital Territory										Northern Territory									
	Voters	Current		Magnitude 3		Magnitude 5		Magnitude 7			Voters	Current		Magnitude 3		Magnitude 5		Magnitude 7		
2070	508,484	2	254,242	3	169,495	5	101,697	7	72,641		212,093	2	106,047	3	70,698	5	42,419	7	30,299	
2067	498,891	2	249,446	3	166,297	5	99,778	7	71,270		208,908	2	104,454	3	69,636	5	41,782	7	29,844	
2064	489,046	2	244,523	3	163,015	5	97,809	7	69,864		205,699	2	102,850	3	68,566	5	41,140	7	29,386	
2061	478,941	2	239,470	3	159,647	5	95,788	7	68,420		202,459	2	101,230	3	67,486	5	40,492	7	28,923	
2058	468,557	2	234,278	3	156,186	5	93,711	7	66,937		199,178	2	99,589	3	66,393	5	39,836	7	28,454	
2055	457,796	2	228,898	3	152,599	5	91,559	7	65,399		195,827	2	97,913	3	65,276	5	39,165	7	27,975	
2052	446,580	2	223,290	3	148,860	5	89,316	7	63,797		192,378	2	96,189	3	64,126	5	38,476	7	27,483	
2049	434,907	2	217,453	3	144,969	5	86,981	7	62,130		188,821	2	94,410	3	62,940	5	37,764	7	26,974	
2046	422,815	2	211,407	3	140,938	5	84,563	7	60,402		185,152	2	92,576	3	61,717	5	37,030	7	26,450	
2043	410,366	2	205,183	3	136,789	5	82,073	7	58,624		181,386	2	90,693	3	60,462	5	36,277	7	25,912	
2040	397,591	2	198,795	3	132,530	5	79,518	7	56,799		177,545	2	88,773	3	59,182	5	35,509	7	25,364	
2037	384,518	2	192,259	3	128,173	5	76,904	7	54,931		173,634	2	86,817	3	57,878	5	34,727	7	24,805	
2034	371,023	2	185,512	3	123,674	5	74,205	7	53,003		169,601	2	84,801	3	56,534	5	33,920	7	24,229	
2031	356,518	2	178,259	3	118,839	5	71,304	7	50,931		165,049	2	82,525	3	55,016	5	33,010	7	23,578	
2028	340,173	2	170,086	3	113,391	5	68,035	7	48,596		159,094	2	79,547	3	53,031	5	31,819	7	22,728	
2025	315,841	2	157,921								153,223	2	76,612							
2022	301,286	2	150,643								142,314	2	71,157							
2019	288,273	2	144,137								138,397	2	69,199							
2016	270,026	2	135,013								130,826	2	65,413							
2013	248,068	2	124,034								121,919	2	60,960							
2010	243,765	2	121,883								120,212	2	60,106							
2007	225,773	2	112,887								112,619	2	56,310							
2004	218,949	2	109,475								109,250	2	54,625							
2001	209,063	2	104,532								106,101	2	53,051							
1998	203,632	2	101,816								104,151	2	52,076							
1996	192,383	2	96,192								97,792	2	48,896							
1993	174,825	2	87,413								83,631	2	41,816							
1990	163,112	2	81,556								74,808	2	37,404							
1987	153,520	2	76,760								69,987	2	34,994							
1984	150,416	2	75,208								68,857	2	34,429							
1983	137,405	2	68,703								57,320	2	28,660							
1980	136,281	2	68,141								55,342	2	27,671							